

To adequately state a claim for exemplary damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a); *Turman, supra*, 191 Cal.App.4th at 63.) “Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).)

C. DISCUSSION

The Court finds no factual allegations in the Complaint that Defendants acted with oppression or malice. Parroting the language of the punitive damages statute is insufficient without facts to support the allegation. Plaintiff asserts that “the Complaint alleges far more than the bare violation of a statute.” (Opp., 6:9-14, citing Compl., ¶¶ 14-19.) The Court disagrees. While the Court finds the allegations sufficient to state a cause of action (as found in the Court’s concurrent ruling on Defendants’ demurrer), the Court does not find that those factual allegations rise to the level of malice or oppression.

Based on the foregoing, the Court does not find that the factual allegations of the SAC are sufficient to support a prayer for punitive damages. The Court, therefore, finds good cause for striking the language parroting the punitive damages statute as well as the punitive damages prayer, as identified in Defendants’ Notice of Motion.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court finds, from the allegations of the Complaint, a *possibility* that Plaintiff can amend to allege facts that would support a finding of malice or oppression. Therefore, the Court grants Plaintiff leave to amend the Complaint for this limited purpose.

.....
Julie Anne Corley et al v. Monticello Vineyards, Inc.

26CV001522

PETITIONERS’ APPLICATION COMPELLING ANNUAL MEETING OF
SHAREHOLDERS

TENTATIVE RULING: The Application is GRANTED. Monticello Vineyards, Inc. shall hold its annual meeting of shareholders on October 21, 2026, at 10:00 a.m., in person and by simultaneous electronic video screen communication. The record date for determining the shareholders entitled to notice of and to vote at the meeting shall be May 21, 2026.

Petitioners Julie Anne Corley, Carolyn Corley Burgess, Chris Corley and Marilyn Corley apply, pursuant to California Corporations Code section 600, subdivision (c), for an order compelling respondent Monticello Vineyards, Inc. (MV) to hold its annual meeting of shareholders.

Good cause appearing, and no opposition having been filed, the Motion is GRANTED.